



Stephen Cooke <stephencooke.c@gmail.com>

Your Family Law Matter

6 messages

Matthew Shepherd <mshepherd@ramsdenlaw.com.au>

Thu, May 16, 2024 at 12:17 PM

To: "stephencooke.c@gmail.com" <stephencooke.c@gmail.com>

Cc: Michele Allen <MAllen@ramsdenlaw.com.au>

Dear Stephen

I hope our conference today was of assistance.

I attach our costs agreement including the best fee estimate we can give at this stage. If it is acceptable, please sign and return to us.

Michelle will send you tomorrow:

1. a payment request to pay an initial \$5,000 in trust.
2. An authority to your current lawyers to send the file to us and to pay monies they hold in trust into our trust account.

Once we have the costs agreement signed by you and the initial \$5,000 in trust:

1. I will prepare a draft letter to the other side re:
 - a. Further documents. We can discuss this and seek Hugo's input.
 - b. Whether the matter is ready for mediation yet, and choice of mediator and location (Newcastle, Sydney, video).
 - c. Possibly about one-on-one time of the boys for a couple of hours on separate days each week.
2. I can get on the court record and view all filed documents on the court portal.

Regards,

MATTHEW SHEPHERD

Acc. Spec. (Family Law) NSW

D: (02) 8123 1229**E:** mshepherd@ramsdenlaw.com.auA SMARTER
PERSPECTIVE**T:** 1300 749 709 | **W:** ramsdenfamilylaw.com.au**A:** Level 6, [15 Castlereagh Street, Sydney NSW 2000](#)

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**Ramsden Family Law - Costs Agreement 2024.pdf**

335K

Stephen Cooke <stephencooke.c@gmail.com>
To: Matthew Shepherd <mshepherd@ramsdenlaw.com.au>
Cc: Michele Allen <MAllen@ramsdenlaw.com.au>

Thu, May 16, 2024 at 1:38 PM

Hi Mathew,

I wanted to express my gratitude for your assistance—it was incredibly helpful, thank you!

Could we discuss establishing payment terms for the funds held in trust? Unfortunately, I'm currently experiencing a cash flow issue. However, I've attached correspondence indicating an approved drawdown request from my investment, which is due to be paid out by the 28th. As of May 8th, my previous lawyer is holding \$21,051.13 in trust.

I haven't yet signed the attached mediation agreement. Last Friday, my communication with my lawyer ceased when she informed me that I would need to represent myself if I wished to review correspondence regarding the condo. Additionally, she was unwilling to delay mediation until disclosure was provided and expressed her belief that there is no conflict of interest in the sales agent for the home being a patient of/referred by my stbxw's business partner.

I also recently incurred a significant expense—I paid \$4.4k to the forensic accountant just a few days ago. This expenditure came unexpectedly, and I hadn't anticipated spending such a substantial amount so quickly.

Kind regards,

Stephen

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9 attachments

image001.png
30K



image002.png
14K

 **Gmail - [Praemium] Re Waiting for the sell down - Request for Partial Withdrawal of \$30,000 from SMA00418788.pdf**
186K

 **Gmail - Your Family Law Matter - fees for mediation.pdf**
268K

 **Gmail - Your Family Law Matter - Mediation & QLD Valuation.pdf**
278K

 **Mediation - Some Common Questions.pdf**
396K

 **Tax invoice #2534 dated 8.5.24.pdf**
56K

 **Cooke MEDIATION AGT .pdf**
148K

 **Index to Financial Disclosure - Other Side(1).docx**
54K

Stephen Cooke <stephencooke.c@gmail.com>
To: Matthew Shepherd <mshepherd@ramsdenlaw.com.au>
Cc: Michele Allen <MAllen@ramsdenlaw.com.au>

Fri, May 17, 2024 at 1:45 AM

Hi Matthew,

Please see attached.

Regards,

Stephen Cooke

Follow me on LinkedIn: [www.linkedin.com/in/stephen-cooke-b853702ab]

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Signed - Ramsden Family Law - Costs Agreement 2024.pdf
3311K

Matthew Shepherd <mshepherd@ramsdenlaw.com.au>

Fri, May 17, 2024 at 2:36 AM

To: Stephen Cooke <stephencooke.c@gmail.com>

Cc: Michele Allen <MAllen@ramsdenlaw.com.au>

Dear Stephen

If you are unable to make an initial payment of \$5,000 now, we can await the balance of the trust money from your current solicitor. On receipt of that, I can start work on the initial steps outlined in my email of yesterday.

Michelle will send you the authority and request form addressed to your current lawyers this morning for signing and returning to us. I do not know how up to date their last bill is and whether it is paid. They may send you a final bill and seek permission to pay it from the trust monies.

I am about to start a full day mediation so will not be able to communicate today. Michelle will be able to assist in getting the authority to you and then to your current lawyers once signed and returned by you.

Regards,

MATTHEW SHEPHERD

Acc. Spec. (Family Law) NSW

D: (02) 8123 1229

E: mshepherd@ramsdenlaw.com.au



A SMARTER
PERSPECTIVE

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Stephen Cooke <stephencooke.c@gmail.com>
To: Matthew Shepherd <mshepherd@ramsdenlaw.com.au>
Cc: Michele Allen <MAllen@ramsdenlaw.com.au>

Fri, May 17, 2024 at 4:58 AM

Understood. I'm optimistic there are still significant funds available as I have not had discussions with her since Friday last week, *fingers crossed*.

I have 7 days per the attached notice before an application is made to have me removed from the marital home per the attached letter from the OS.

Here are my comments with respect to the letter:

- I've attached both current and past photos to demonstrate that the property has been well-maintained. Mike was very insistent on inspecting the property as soon as possible. I informed him that the timing was poor, as I had just finished a busy weekend and a hectic morning with the school drop-off, and I wanted to clean the place first. **Mike reassured me that he was okay with it being messy and that I shouldn't worry.** However, he did not inform me beforehand that he would be taking photos. Feeling compelled to comply promptly with orders, I accomadit the visit. Unfortunately, Mike took these photos at an inconvenient time, right after I had dropped the kids off at school, which does not accurately depict how the property has been maintained.

- I attach an invoice from a licensed electrician noting that all wiring has been checked and safe (done prior to the children coming into my care again). The poor quality photo from the real estate agent with the laundry basket shows an iPad charging cable. The cables referenced but not shown by the real estate agent, I assume would be the boys laptop cables.

- I refute that I am in violation of a breach of orders with respect to damage done to the home or that I have not maintained the home and that I should be made wholly responsible for all repair and deep cleaning costs. The orders state we are to contribute costs equally with regards to preparing the home for sale and these issues were pre-existing.

- Please see the attached 'Gmail - Mediation June 18th.pdf' where I have detailed my concerns about a potential conflict of interest. Specifically, Mike Flook from Robinson Real Estate and Rohan Bhagwandeem, the Practice Manager at Newcastle Heart, who is a good friend and colleague of Heather. **(disclosed to me after the signing of the agency agreement)** Additionally, the other agent, Simon Wall, is managing Heather's lease for her current rental property. Note: I had previously discussed these concerns verbally with Jacqueline before documenting them in writing.

Wouldn't the nature of an arrangement, where one party suggests three agents and the other party selects three from those suggested, inherently aim to preserve neutrality? This neutrality seems compromised if Heather is the one proposing the agents for my selection, especially given her prior relationships/connections. In contrast, the agents I select would have no prior relationship with Heather nor I. **Per your suggestion, I'll take a look over the weekend at 3 alternative agents to suggest.**

This is the reason why I have not yet responded to Kent Conveyancing's request to execute their agreement and am currently in violation of the order with respect to honoring the 7 day timeline.

Lastly, there are several items awaiting disposal through bulk waste collection (see attached request). Items such as old damaged bikes, a broken lawn mower, furniture, etc are currently occupying the garage, side entrance, and basement storage. I am awaiting a collection date and will follow up with them today.

Best Regards,

Stephen Cooke

Follow me on LinkedIn: [www.linkedin.com/in/stephen-cooke-b853702ab]

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3 attachments

 **Electrical Notes and Invoice - INV00043050.pdf**
416K

 **As of May 17 2024 213 Morgan Street.pdf**
18374K

 **Gmail - Mediation Jun 18th.pdf**
238K

Stephen Cooke <stephencooke.c@gmail.com>
To: Matthew Shepherd <mshepherd@ramsdenlaw.com.au>
Cc: Michele Allen <MAllen@ramsdenlaw.com.au>

Fri, May 17, 2024 at 5:13 AM

Missing attachment regarding bulk waste collection.

Regards,

Follow me on LinkedIn: [\[www.linkedin.com/in/stephen-cooke-b853702ab\]](https://www.linkedin.com/in/stephen-cooke-b853702ab)

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 **Gmail - City of Newcastle - Bulk Waste Service Notification.pdf**
102K